

No. 23-13396

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order
of the Securities and Exchange Commission

**MOTION TO FILE CERTIFICATE OF INTERESTED PERSONS AND
CORPORATE DISCLOSURE STATEMENT (CIP) AND WEB-BASED CIP
OUT OF TIME**

MEGAN BARBERO
General Counsel

MICHAEL A. CONLEY
Solicitor

TRACEY A. HARDIN
Assistant General Counsel

DANIEL E. MATRO
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**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

The undersigned counsel for Respondent Securities and Exchange Commission hereby certifies that the following listed persons and entities as described in Eleventh Circuit Rule 26.1-2 have an interest in the outcome of this case:

- 1) Altman, Jennifer G., Pillsbury Withrop Shaw Pittman LLP, counsel for NYSE Intervenor-Applicants.
- 2) American Securities Association, Petitioner.
- 3) ArentFox Schiff LLP, counsel for Intervenor-Applicants Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 4) Barbero, Megan, counsel for Respondent Securities and Exchange Commission.
- 5) Borse Dubai Limited, owner of more than 10% of Nasdaq, Inc.'s shares.
- 6) BOX Exchange LLC, member and participant of CAT LLC.
- 7) Boyle, Gregory, counsel for Consolidated Audit Trail, LLC.
- 8) Cboe BYX Exchange, Inc., member and participant of CAT LLC.
- 9) Cboe BZX Exchange, Inc., member and participant of CAT LLC.
- 10) Cboe C2 Exchange, Inc., member and participant of CAT LLC.
- 11) Cboe EDGA Exchange, Inc., member and participant of CAT LLC.
- 12) Cboe EDGX Exchange, Inc., member and participant of CAT LLC.
- 13) Cboe Exchange, Inc., member and participant of CAT LLC.
- 14) Cboe Global Markets, Inc. (BATS: CBOE), direct or indirect parent company of Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.

- 15) Citadel Securities GP LLC, parent company of Citadel Securities LLC.
- 16) Citadel Securities LLC, Petitioner.
- 17) Conley, Michael A., counsel for Respondent Securities and Exchange Commission.
- 18) Connolly, J. Michael, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
- 19) Consolidated Audit Trail, LLC, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan.
- 20) Financial Industry Regulatory Authority, Inc., member and participant of CAT LLC.
- 21) Francisco, Noel J., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 22) Hardin, Tracey A., counsel for Respondent Securities and Exchange Commission.
- 23) Hoyt, Joshua T., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 24) Gershengorn, Ian Heath, counsel for Consolidated Audit Trail, LLC.
- 25) Greenwalt, Paul, III, counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 26) Intercontinental Exchange, Inc. (NYSE: ICE), indirect parent of NYSE Intervenor-Applicants.
- 27) International Securities Exchange Holdings, Inc., sole LLC member of Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC.
- 28) Investor AB (Nasdaq Stockholm: INVEB), owner of more than 10% of Nasdaq, Inc.'s shares.
- 29) Investors' Exchange, LLC, member and participant of CAT LLC.
- 30) Jenner & Block LLP, counsel for Consolidated Audit Trail, LLC.

- 31) Kastenbergh, Stephen J., Ballard Spahr LLP, counsel for Intervenor-Applicants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 32) Katsiff, Timothy D., Ballard Spahr LLP, counsel for Intervenor-Applicants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 33) Kennedy, Jordan, counsel for Respondent Securities and Exchange Commission.
- 34) Lantieri, Paul, Ballard Spahr LLP, counsel for Intervenor-Applicants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 35) Long-Term Stock Exchange, Inc., member and participant of CAT LLC.
- 36) Lucas, Brinton, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 37) MacLean, Matthew J., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor-Applicants.
- 38) Matro, Daniel E., counsel for Respondent Securities and Exchange Commission.
- 39) MEMX LLC, member and participant of CAT LLC.
- 40) Miami International Securities Exchange LLC, member and participant of CAT LLC.
- 41) MIAX Emerald, LLC, member and participant of CAT LLC.
- 42) MIAX PEARL, LLC, member and participant of CAT LLC.
- 43) Molzberger, Michael, counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 44) Nasdaq BX, Inc., Intervenor-Applicant.
- 45) Nasdaq GEMX, LLC, Intervenor-Applicant.

- 46) Nasdaq, Inc. (Nasdaq: NDAQ), sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.
- 47) Nasdaq ISE, LLC, Intervenor-Applicant.
- 48) Nasdaq MRX, LLC, Intervenor-Applicant.
- 49) Nasdaq PHLX LLC, Intervenor-Applicant.
- 50) New York Stock Exchange LLC, Intervenor-Applicant.
- 51) NYSE American LLC, Intervenor-Applicant.
- 52) NYSE Arca, Inc., Intervenor-Applicant.
- 53) NYSE Chicago, Inc., Intervenor-Applicant.
- 54) NYSE National, Inc., Intervenor-Applicant.
- 55) Phillips, David, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 56) Rabbitt, Brian C., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 57) Roth, Yaakov M., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 58) The Nasdaq Stock Market LLC, Intervenor-Applicant.
- 59) The Vanguard Group, Inc., owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023.
- 60) Thoma Bravo UGP, LLC, owner of more than 10% of Nasdaq, Inc.'s shares.
- 61) Unikowsky, Adam, counsel for Consolidated Audit Trail, LLC.
- 62) United States Securities and Exchange Commission, Respondent.

**MOTION TO FILE CERTIFICATE OF INTERESTED PERSONS AND
CORPORATE DISCLOSURE STATEMENT (CIP) AND WEB-BASED CIP
OUT OF TIME**

In response to the Clerk of Court's November 22, 2023 public communication, the Securities and Exchange Commission respectfully requests that the Court allow it to file its Certificate of Interested Persons and Corporate Disclosure Statement (CIP) and Web-Based CIP, as required by Eleventh Circuit Rule 26.1-1, out of time.

Petitioners American Securities Association and Citadel Securities LLC do not oppose the relief sought in this motion. In further support of the motion, the Commission states:

1. Petitioners sought review of the order at issue on October 17, 2023. The Commission timely filed Appearance of Counsel forms, which included the case caption, along with attorneys' names and contact information.

2. Under Eleventh Circuit Rules 26.1-1(a)(1) and (a)(2), the Commission should have filed a Certificate of Interested Persons and Corporate Disclosure Statement as well as a web-based CIP within 28 days after the petition for review was docketed: in this case, by November 14, 2023. The Commission inadvertently overlooked this requirement. The Commission is filing this motion expeditiously after receiving the notice of deficiency. Its only additions to the Certificate of Interested Persons filed by Petitioners, ECF No. 6, are the names of Commission counsel.

3. Counsel for the Commission has conferred with counsel for Petitioners American Securities Association and Citadel Securities LLC, who state that they do not oppose the relief requested in this motion.

For these reasons, the Commission respectfully requests that the Court permit it to file the attached Certificate of Interested Persons and Corporate Disclosure Statement, and to complete the Court's web-based CIP, out of time.

Respectfully submitted,

MEGAN BARBERO
General Counsel

MICHAEL A. CONLEY
Solicitor

TRACEY A. HARDIN
Assistant General Counsel

/s/ Daniel E. Matro
DANIEL E. MATRO
Senior Appellate Counsel

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November 24, 2023

CERTIFICATE OF COMPLIANCE

I certify that this motion complies with the type-volume limitation set forth in Federal Rule of Appellate Procedure 27(d)(2)(a) because it contains 276 words, excluding the parts of the motion exempted by Federal Rule of Appellate Procedure 32(f).

I also certify that this motion complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5) and the type-style requirements of Federal Rule of Appellate Procedure 32(a)(6) because it has been prepared in a proportionally spaced typeface—Garamond, 14 point—using Microsoft Word.

/s/ Daniel E. Matro
Daniel E. Matro

November 24, 2023

CERTIFICATE OF SERVICE

I hereby certify that on November 24, 2023, I electronically filed the foregoing with the Clerk of Court for the United States Court of Appeals for the Eleventh Circuit by using the Court's CM/ECF system, which will send notice to all the parties.

/s/ Daniel E. Matro

DANIEL E. MATRO

November 24, 2023

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Respondent.

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**RESPONDENT SECURITIES AND EXCHANGE COMMISSION'S
CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, the undersigned counsel for Respondent Securities and Exchange Commission hereby certifies that the following listed persons and entities have an interest in the outcome of this case:

- 1) Altman, Jennifer G., Pillsbury Withrop Shaw Pittman LLP, counsel for NYSE Intervenor-Applicants.
- 2) American Securities Association, Petitioner.
- 3) ArentFox Schiff LLP, counsel for Intervenor-Applicants Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
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- 62) United States Securities and Exchange Commission, Respondent.

Respectfully submitted,

MEGAN BARBERO
General Counsel

MICHAEL A. CONLEY
Solicitor

TRACEY A. HARDIN
Assistant General Counsel

/s/ Daniel E. Matro
DANIEL E. MATRO
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November 24, 2023

CERTIFICATE OF SERVICE

I hereby certify that on November 24, 2023, I electronically filed the foregoing with the Clerk of Court for the United States Court of Appeals for the Eleventh Circuit by using the Court's CM/ECF system, which will send notice to all the parties.

/s/ Daniel E. Matro

DANIEL E. MATRO

November 24, 2023